

STATE OF NEW YORK

7918--A

2025-2026 Regular Sessions

IN ASSEMBLY

April 11, 2025

Introduced by M. of A. MAHER -- read once and referred to the Committee on Local Governments -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend chapter 636 of the laws of 1995 relating to incorporating the Volunteer and Exempt Firemen's Benevolent Association of Coldenham Inc., and providing for its powers and duties, in relation to the purposes and duties of such corporation and the use of foreign fire insurance premium taxes

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Sections 1, 2, 3 and 7 of chapter 636 of the laws of 1995
2 relating to incorporating the Volunteer and Exempt Firemen's Benevolent
3 Association of Coldenham Inc., and providing for its powers and duties,
4 are amended to read as follows:

5 Section 1. Incorporation; membership. A not-for-profit corporation by
6 the name of the Volunteer and Exempt [~~Firemen's~~ Firefighter's Benevo-
7 lent Association of Coldenham, Inc., is hereby created. It shall be
8 composed of such persons eligible to membership therein as hereinafter
9 provided as shall (a) notify the secretary of the Volunteer [~~Firemen's~~
10 Firefighter's Benevolent Association of Coldenham, Inc., in writing
11 prior to the organization meeting of such corporation hereinafter
12 provided for of their desire to become members, or (b) shall attend such
13 meeting or an adjournment thereof, and also such persons so eligible as
14 may become members of such corporation, pursuant to its by-laws.

15 § 2. Persons eligible to membership. All persons who are now or have
16 been, or hereafter shall be active volunteer members of the fire company
17 or corporation of Coldenham and who have heretofore acquired or shall
18 hereafter acquire the status of exempt volunteer [~~firemen~~ firefighter
19 as defined in section 200 of the general municipal law or any other
20 applicable law by virtue of having rendered service in said fire corpo-
21 ration or fire company in such district, and all persons who are now or
22 hereafter shall be active volunteer members of said fire company or
23 corporation shall be eligible for membership in the corporation hereby
24 created; provided that any person who has been expelled or removed for

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

LBD10688-02-5

1 cause from membership in any fire department or company shall not be
2 eligible to membership in such corporation. The membership of any person
3 in such corporation shall terminate when ~~[his]~~ their membership as an
4 active volunteer member of the fire company or corporation of Coldenham
5 shall terminate before such persons shall have acquired the status of
6 exempt volunteer ~~[firemen]~~ firefighter as defined in section 200 of the
7 general municipal law by virtue of having rendered services to such fire
8 company or corporation.

9 § 3. Purposes. The purposes of ~~[such corporation shall be the mainte-~~
10 ~~nance of suitable headquarters for, and the promotion of friendly asso-~~
11 ~~ciation for the betterment of the members of such corporation and their~~
12 ~~relations with the community, for the promotion of fraternal intercourse~~
13 ~~among the members of such corporation, to study and disseminate among~~
14 ~~the members of such corporation the most efficient manner of fighting~~
15 ~~fire, the relief, aid and assistance of such members and their families~~
16 ~~who are disabled or indigent and to acquire real and personal property~~
17 ~~such as may be necessary for the purposes herein set forth and the~~
18 ~~promotion of the welfare of the volunteer fire service within the terri-~~
19 ~~tory now served or which may hereafter be served by the fire company or~~
20 ~~corporation of Coldenham]~~ the corporation created by this act shall be:
21 (a) to provide relief, aid and assistance to the volunteer members of
22 such corporation who are disabled, indigent or injured in the perform-
23 ance of such members' duties, and such members' families; (b) to promote
24 and safeguard the welfare of the volunteer members of such corporation,
25 and such members' families; (c) to provide for the health and safety of
26 the volunteer members of the corporation; (d) to maintain a suitable
27 headquarters for the members of such corporation; (e) to enhance the
28 morale of the volunteer members of such corporation by providing social
29 and recreational activities for the volunteer members of such corpo-
30 ration; and (f) the promotion of the volunteer fire service within the
31 territory protected by such Coldenham Fire Department.

32 § 7. Precept for payment of foreign fire insurance premium taxes. Such
33 corporation shall collect and there shall be paid to it all taxes
34 imposed by section 9104 of the insurance law for fire department use and
35 benefit upon premiums for insurance against loss or damage by fire
36 covering property situated within the Coldenham fire district within the
37 towns of Newburgh and Montgomery located in Orange county, New York. The
38 officers of said corporation designated by its by-laws to collect and
39 receive the aforesaid tax shall have all the powers and be subject to
40 all the provisions of the insurance law, relating to treasurers of fire
41 departments. Such corporation shall also be entitled to receive a share
42 of the tax distributed pursuant to the provisions of section 9105 of the
43 insurance law, based upon the business written in the territory with
44 respect to which it is entitled to collect and receive the tax under
45 section 9104 of the insurance law. Such taxes shall only be used ~~[for~~
46 ~~the care and relief of indigent volunteer and exempt firefighters and~~
47 ~~their families]~~ by the corporation in furtherance of its purposes as set
48 forth in section three of this act.

49 § 2. This act shall take effect immediately; provided, however, that
50 the amendments to section 7 of chapter 636 of the laws of 1995 relating
51 to incorporating the Volunteer and Exempt Firemen's Benevolent Associ-
52 ation of Coldenham Inc., and providing for its powers and duties made by
53 section one of this act shall apply to taxes due on premiums received on
54 and after January 1, 2026.